

**Return of Allotment of Shares**Company Name: **ALPHA FMC MIDCO LIMITED**Company Number: **09928345**Received for filing in Electronic Format on the: **12/10/2023**

XCDZFQLD

Shares Allotted (including bonus shares)

Date or period during which shares are allotted	From	To
	11/10/2023	

Class of Shares:	A ORDINARY	Number allotted	1072006
Currency:	GBP	Nominal value of each share	1
		Amount paid:	1072006
		Amount unpaid:	0

No shares allotted other than for cash

Statement of Capital (Share Capital)

Class of Shares:	C	Number allotted	1400000
	ORDINARY	Aggregate nominal value:	7
Currency:	GBP		
Prescribed particulars			

(A) SUBJECT TO ARTICLES 7 3 3 AND 7 3 4 - 7 3 7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE A ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON A POLL EACH A ORDINARY SHARE SHALL CARRY ONE VOTE. THE A ORDINARY SHAREHOLDERS (AS A CLASS) SHALL BE ENTITLED TO CAST 100% OF THE VOTING RIGHTS THAT ARE NOT CAPABLE OF BEING CAST BY B ORDINARY SHAREHOLDERS PURSUANT TO PARAGRAPH 7 3 1 (B) OF THE COMPANY'S ARTICLES OF ASSOCIATION AND WHERE THERE IS MORE THAN ONE HOLDER OF A ORDINARY SHARE EACH HOLDER SHALL BE ENTITLED TO CAST THAT PROPORTION OF THE VOTING RIGHTS CAPABLE OF BEING CAST BY THE A ORDINARY SHAREHOLDERS THAT HIS HOLDING OF A ORDINARY SHARES BEARS TO THE TOTAL NUMBER OF A ORDINARY SHARES IN ISSUE (B) SUBJECT TO ARTICLES 7 2 2 AND 7 2 3 OF THE COMPANY'S ARTICLES OF ASSOCIATION (A) THE CAPITAL AND ASSETS OF THE COMPANY ON A WINDING-UP OR OTHER RETURN OF CAPITAL AVAILABLE FOR DISTRIBUTION, AND (B) THE PROCEEDS OF SALE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION), SHALL BE DISTRIBUTED AMONGST THE ORDINARY SHAREHOLDERS AS FOLLOWS (I) IN PAYING TO EACH HOLDER OF THE B ORDINARY SHARES AN AMOUNT EQUAL TO THE B SHARE SUBSCRIPTION AMOUNT (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) PER B ORDINARY SHARE AND ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) ACCRUED BUT UNPAID ON THE B ORDINARY SHARES HELD BY THE RELEVANT HOLDER AND, IF THERE IS A SHORTFALL OF PROCEEDS AVAILABLE TO SATISFY SUCH PAYMENTS IN FULL, THE PROCEEDS SHALL BE SHARED AMONG THE HOLDERS OF THE ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF ORDINARY SHARES HELD, (II) FROM THE BALANCE (IF ANY) OF THE PROCEEDS REMAINING AFTER THE PAYMENT OF THOSE SUMS REFERRED TO IN ARTICLES 7 2 1 (I) OF THE COMPANY'S ARTICLES OF ASSOCIATION, IN PAYING THIS TO THE HOLDERS OF THE A ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD FOR THE AVOIDANCE OF DOUBT, TO THE EXTENT THERE IS MORE THAN ONE DISTRIBUTION TO BE PAID BY THE COMPANY, THE HOLDERS OF B ORDINARY SHARES SHALL ONLY BE ENTITLED TO A PAYMENT IN ACCORDANCE WITH ARTICLE 7 2 1 (I) ONCE, FOLLOWING WHICH ALL FURTHER DISTRIBUTIONS SHALL BE PAID TO THE HOLDERS OF A ORDINARY SHARES UPON A SALE, THOSE ORDINARY SHARE NOT ACQUIRED BY THE RELEVANT PURCHASER(S) SHALL NOT BE ENTITLED TO ANY ALLOCATION OF PROCEEDS PURSUANT TO ARTICLE 7 2 1 OF THE COMPANY'S ARTICLES OF ASSOCIATION (C) ANY PROFITS WHICH THE DIRECTORS LAWFULLY DETERMINE TO DISTRIBUTE TO THE A ORDINARY SHAREHOLDERS IN RESPECT OF ANY FINANCIAL YEAR, AFTER DECLARATION OF ANY B SHARE DIVIDENDS (AS DEFINED

IN THE COMPANY'S ARTICLES), SHALL BE DISTRIBUTED AMONGST THE A ORDINARY SHAREHOLDERS (IN RESPECT OF THEIR A ORDINARY SHARES ONLY) PRO RATA AND PARI PASSU ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD BY EACH OF THEM (D) THE A ORDINARY SHARES MAY BE ISSUED ON THE TERMS THAT THEY ARE, OR AT THE OPTION OF THE COMPANY OR THE HOLDER ARE LIABLE, TO BE REDEEMED AND THE COMPANY'S BOARD (SUBJECT TO THE TERMS OF THE INVESTMENT AGREEMENT AND THE FINANCE DOCUMENTS (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) SHALL BE AUTHORISED TO DETERMINE THE TERMS, CONDITIONS AND MANNER OF REDEMPTION OF SUCH SHARES

Class of Shares:	ORDINARY	Number allotted	1087966
	'A' GBP1	Aggregate nominal value:	1087966
	SHARES		

Currency: GBP

Prescribed particulars

(A) SUBJECT TO ARTICLES 7 3 3 AND 7 3 4 - 7 3 7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE A ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON A POLL EACH A ORDINARY SHARE SHALL CARRY ONE VOTE. THE A ORDINARY SHAREHOLDERS (AS A CLASS) SHALL BE ENTITLED TO CAST 100% OF THE VOTING RIGHTS THAT ARE NOT CAPABLE OF BEING CAST BY B ORDINARY SHAREHOLDERS PURSUANT TO PARAGRAPH 7 3 1 (B) OF THE COMPANY'S ARTICLES OF ASSOCIATION AND WHERE THERE IS MORE THAN ONE HOLDER OF A ORDINARY SHARE EACH HOLDER SHALL BE ENTITLED TO CAST THAT PROPORTION OF THE VOTING RIGHTS CAPABLE OF BEING CAST BY THE A ORDINARY SHAREHOLDERS THAT HIS HOLDING OF A ORDINARY SHARES BEARS TO THE TOTAL NUMBER OF A ORDINARY SHARES IN ISSUE (B) SUBJECT TO ARTICLES 7 2 2 AND 7 2 3 OF THE COMPANY'S ARTICLES OF ASSOCIATION (A) THE CAPITAL AND ASSETS OF THE COMPANY ON A WINDING-UP OR OTHER RETURN OF CAPITAL AVAILABLE FOR DISTRIBUTION, AND (B) THE PROCEEDS OF SALE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION), SHALL BE DISTRIBUTED AMONGST THE ORDINARY SHAREHOLDERS AS FOLLOWS (I) IN PAYING TO EACH HOLDER OF THE B ORDINARY SHARES AN AMOUNT EQUAL TO THE B SHARE SUBSCRIPTION AMOUNT (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) PER B ORDINARY SHARE AND ANY B SHARE DIVIDENDS (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) ACCRUED BUT UNPAID ON THE B ORDINARY SHARES HELD BY THE RELEVANT HOLDER AND, IF THERE IS A SHORTFALL OF PROCEEDS AVAILABLE TO SATISFY SUCH PAYMENTS IN FULL, THE PROCEEDS SHALL BE SHARED AMONG THE HOLDERS OF THE ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF ORDINARY SHARES HELD, (II) FROM THE BALANCE (IF ANY) OF THE PROCEEDS REMAINING AFTER THE PAYMENT OF THOSE SUMS REFERRED TO IN ARTICLES 7 2 1 (I) OF THE COMPANY'S ARTICLES OF ASSOCIATION, IN PAYING THIS TO THE HOLDERS OF THE A ORDINARY SHARES PRO RATA ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD FOR THE AVOIDANCE OF DOUBT, TO THE EXTENT THERE IS MORE THAN ONE DISTRIBUTION TO BE PAID BY THE COMPANY, THE HOLDERS OF B ORDINARY SHARES SHALL ONLY BE ENTITLED TO A PAYMENT IN ACCORDANCE WITH ARTICLE 7 2 1 (I) ONCE, FOLLOWING WHICH ALL FURTHER DISTRIBUTIONS SHALL BE PAID TO THE HOLDERS OF A ORDINARY SHARES UPON A SALE, THOSE ORDINARY SHARE NOT ACQUIRED BY THE RELEVANT PURCHASER(S) SHALL NOT BE ENTITLED TO ANY ALLOCATION OF PROCEEDS PURSUANT TO ARTICLE 7 2 1 OF THE COMPANY'S ARTICLES OF ASSOCIATION (C) ANY PROFITS WHICH THE DIRECTORS LAWFULLY DETERMINE TO DISTRIBUTE TO THE A ORDINARY SHAREHOLDERS IN RESPECT OF ANY FINANCIAL YEAR, AFTER DECLARATION OF ANY B SHARE DIVIDENDS (AS DEFINED

IN THE COMPANY'S ARTICLES), SHALL BE DISTRIBUTED AMONGST THE A ORDINARY SHAREHOLDERS (IN RESPECT OF THEIR A ORDINARY SHARES ONLY) PRO RATA AND PARI PASSU ACCORDING TO THE NUMBER OF A ORDINARY SHARES HELD BY EACH OF THEM (D) THE A ORDINARY SHARES MAY BE ISSUED ON THE TERMS THAT THEY ARE, OR AT THE OPTION OF THE COMPANY OR THE HOLDER ARE LIABLE, TO BE REDEEMED AND THE COMPANY'S BOARD (SUBJECT TO THE TERMS OF THE INVESTMENT AGREEMENT AND THE FINANCE DOCUMENTS (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) SHALL BE AUTHORISED TO DETERMINE THE TERMS, CONDITIONS AND MANNER OF REDEMPTION OF SUCH SHARES

Class of Shares:	ORDINARY	Number allotted	4040
	'B' GBP1	Aggregate nominal value:	4040
	SHARES		
Currency:	GBP		
Prescribed particulars			

(A) SUBJECT TO ARTICLES 7 3 3 AND 7 3 4-7 3 7 OF THE COMPANY'S ARTICLES OF ASSOCIATION, THE B ORDINARY SHARES SHALL ENTITLE ANY HOLDER THEREOF TO RECEIVE NOTICE OF, AND TO ATTEND AND SPEAK, AT ANY GENERAL MEETING AND ON POLL EACH B ORDINARY SHARE SHALL CARRY ONE VOTE SAVE WHERE A LEAVER OR PERMITTED TRANSFEREE (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) OF A LEAVER HOLDS ANY INTEREST IN ANY B ORDINARY SHARE, EACH B ORDINARY SHAREHOLDER SHALL BE ENTITLED TO CAST 5% OF THE TOTAL NUMBER OF VOTING RIGHTS CAPABLE OF BEING CAST BY ALL HOLDERS OF ORDINARY SHARES IRRESPECTIVE OF THE NUMBER OF B ORDINARY SHARES HELD BY SUCH B ORDINARY SHAREHOLDER. THE MAXIMUM NUMBER OF B SHAREHOLDERS IS 4. THE ONLY ACTS OR OMISSIONS OF THE COMPANY WHICH WILL REQUIRE A CLASS CONSENT OF THE B ORDINARY SHARES SHALL BE ANY DELETION OR VARIATION OF ARTICLE 7 3 1(B) OF THE COMPANY'S ARTICLES (SAVE THAT NO CLASS CONSENT SHALL BE REQUIRED WHERE SUCH DELETION OR VARIATION RESULTS FROM THE OPERATION OF CLAUSE 18 OF THE INVESTMENT AGREEMENT (AS DEFINED IN THE COMPANY'S ARTICLES) OR UPON ANY INTEREST IN THE B ORDINARY SHARES BEING HELD BY LEAVERS OR PERMITTED TRANSFEREES OF LEAVERS), AN SUCH CLASS CONSENT OF THE B ORDINARY SHARES MAY BE GIVEN BY THE HOLDERS OF A MAJORITY OF THE B ORDINARY SHARES THEN IN ISSUE (EXCLUDING ANY B ORDINARY SHARES IN WHICH ANY INTEREST IS HELD BY AN LEAVER OR ANY PERMITTED TRANSFEREE OF A LEAVER TO WHICH ARTICLE 7 3 5 APPLIES) THE PROVISION OF ARTICLE 7 3 5 OF THE COMPANY'S ARTICLES SHALL APPLY (A) IF, AT ANY TIME WITHOUT INVESTOR DIRECTOR CONSENT (AS DEFINED IN THE COMPANY'S ARTICLES), ANY HOLDER OF B ORDINARY SHARES HAS TRANSFERRED SHARES OR ANY INTEREST THEREIN OR ANY OTHER SECURITY OR INTEREST THEREIN IN ANY MEMBER OF THE GROUP (AS DEFINED IN THE COMPANY'S ARTICLES) IN BREACH OF ANY PROVISION OF THE COMPANY'S ARTICLES, THE TOPCO ARTICLES OR THE NOMINEE AGREEMENT (EACH AS DEFINED IN THE INVESTMENT AGREEMENT (AS DEFINED IN THE COMPANY'S ARTICLES)) OR THE B LOAN NOTE TRANSFER AGREEMENT (AS DEFINED IN THE INVESTMENT AGREEMENT), (B) IF, AT ANY TIME WITHOUT INVESTOR DIRECTOR CONSENT, ANY HOLDER OF B ORDINARY SHARES IS IN MATERIAL BREACH OF ANY PROVISION OF THE COMPANY'S ARTICLES AND/OR THE INVESTMENT AGREEMENT AND/OR THE NOMINEE AGREEMENT AND/OR THE B LOAN NOTE TRANSFER AGREEMENT OR ANY FORMER HOLDER OF B ORDINARY SHARES IS IN MATERIAL BREACH OF ANY PROVISION OF THE INVESTMENT AGREEMENT IF ANY OF THE CIRCUMSTANCES STATED IN ARTICLE 7 3 4 OF THE COMPANY'S ARTICLES HAVE OCCURRED IN RESPECT OF THE B ORDINARY SHEHOLDER REFERRED TO IN ARTICLE 7 3 4 OF THE COMPANY'S ARTICLES

(THE " DEFAULTING PERSON"), THEN, UNLESS OTHERWISE AGREED IN WRITING BY THE JHOLDER OF THE MAJORITY OF A ORDINARY SHARES (A) THE SHARES IN WHICH SUCH DEFAULTING PERSON HOLDAS ANY LEAGAL OR BENEFICAL INTERST OR TO WHICH HE IS ENTITLED PURSUAN TO THE NOMINEE AGREEMENT OR OTHERWISE, AND (B) ANY SHARES (OR INTERESTS THEREIN) FORMERLY HELD BY SUCH DEFAULTING PERSON WHICH HAVE BEEN TRANSFERRED EITHER IN BREACH OF THE PROVISIONS OF THE COMPANY'S ARTICLES OF ASSOCATION OR THE NOMINEE AGREEMENT, (SEE CONTINUATION PAGE)

Statement of Capital (Totals)

Currency:	GBP	Total number of shares:	2492006
		Total aggregate nominal value:	1092013
		Total aggregate amount unpaid:	0

Authorisation

Authenticated

This form was authorised by one of the following:

Director, Secretary, Person Authorised, Administrator, Administrative Receiver, Receiver, Receiver Manager, CIC Manager.